

STATE OF NEW YORK

9723--A

IN SENATE

April 2, 2026

Introduced by Sen. CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public housing law, in relation to providing trainings and information to residents regarding resident management corporations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public housing law is amended by adding a new section
2 402-i to read as follows:

3 § 402-i. Resident management corporations. 1. For the purposes of this
4 section, "resident management corporation" means an entity that proposes
5 to enter into, or enters into, a contract to manage one or more manage-
6 ment activities of the New York city housing authority. Such resident
7 management corporation shall be made up of residents of the New York
8 city housing authority and shall meet the following requirements:

9 (a) shall be a non-profit organization validly incorporated under the
10 not-for-profit corporation law;

11 (b) may be established by more than one resident council if such coun-
12 cil:

13 (i) approves the establishment of the resident management corporation;
14 and

15 (ii) has representation on the board of directors of such resident
16 management corporation;

17 (c) shall have an elected board of directors with elections held at
18 least once every three years;

19 (d) shall have by-laws that:

20 (i) require the board of directors to include resident representatives
21 of each resident council involved in establishing the resident manage-
22 ment corporation;

23 (ii) include qualifications to run for office;

24 (iii) include the frequency of elections;

25 (iv) include procedures for recall; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (v) term limits, if desired;

2 (e) shall have voting members of the heads of households and other
3 residents that are at least eighteen years of age and are listed on the
4 lease agreement for a unit represented by such resident management
5 corporation;

6 (f) shall be approved by the resident council board and a majority of
7 the residents if a resident council already exists. If there is no resi-
8 dent council, a majority of the residents of the public housing develop-
9 ment such resident management corporation will represent shall approve
10 the establishment of such resident management corporation; and

11 (g) may serve as both the resident management corporation and the
12 resident council if such resident management corporation meets the
13 requirements of federal laws and regulations for a resident council.

14 2. The New York city housing authority shall provide information and
15 trainings to all residents of such authority's properties regarding the
16 formation of resident management corporations, the requirements of such
17 resident management corporations, and the potential benefits of creating
18 such resident management corporations.

19 § 2. This act shall take effect on the one hundred twentieth day after
20 it shall have become a law. Effective immediately, the addition, amend-
21 ment and/or repeal of any rule or regulation necessary for the implemen-
22 tation of this act on its effective date are authorized to be made and
23 completed on or before such effective date.